



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda **Educator Effectiveness Committee** (Schedule 4)
Item 5.3.

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda **School Innovation and Turnaround Committee** (Schedule 5)
Item 5.4.

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

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Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



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The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

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The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

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220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

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1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

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Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

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Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

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Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

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Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	Department of Health and Hospitals
Contract Period:	04/01/2014 - 08/31/2014
Contract Amount:	\$196,252.00
Fund:	Federal Funds - USDA
Competitive Process:	Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Volunteers of America North LA
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$360,000.00
Amended Amount:	\$38,400.00
Contract Amount:	\$398,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Urban Support Agency, Inc.
Contract Period:	07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

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Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:
- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
 - Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

* * * * *

Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

* * * * *

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

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Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:
- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
 - Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

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- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

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Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:
- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
 - Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

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Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:
- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
 - Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.

Top Secret

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

* * * * *

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.

Top Secret

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2. On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)

Agenda Item 3. On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.

Agenda Item 4. **Report by the State Superintendent of Education**

State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.

5.1.2

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.

5.1.3

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
 Amended Amount: \$133,800.00
 Contract Amount: \$772,800.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$240,000.00
 Amended Amount: \$6,000.00
 Contract Amount: \$246,000.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$180,000.00
 Amended Amount: \$8,400.00
 Contract Amount: \$188,400.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Akili Academy/Crescent City Schools
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$492,000.00
Amended Amount: \$74,400.00
Contract Amount: \$566,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Karen Boudreaux
Contract Period: 02/01/2012 - 01/31/2015
Previous Amount: \$79,500.00
Amended Amount: \$25,500.00
Contract Amount: \$105,000.00
Fund: Federal Fund - Title III
Competitive Process: Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Blitch/Knevel Architects, Inc.
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,473,321.00
Amended Amount: \$15,433.60
Contract Amount: \$1,488,754.60
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$105,034.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Jacobs Project Management Company/CSRS
Consortium
Contract Period: 12/01/2013 - 11/30/2016
Previous Amount: \$23,590,758.00
Amended Amount: \$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 09/16/2010 - 09/16/2015
Previous Amount: \$944,413.20
Amended Amount: \$38,546.20
Contract Amount: \$982,959.40
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Waggonner and Ball Architects, APC
Contract Period: 08/15/2012 - 08/15/2015
Previous Amount: \$1,151,421.08
Amended Amount: \$5,500.00
Contract Amount: \$1,156,921.08
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

* * * * *

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

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Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

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The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

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220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

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1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

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Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

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Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

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Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

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Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:
- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
 - Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.

Top Secret

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2. On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)

Agenda Item 3. On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.

Agenda Item 4. **Report by the State Superintendent of Education**

State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.

5.1.2

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.

5.1.3

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
 Amended Amount: \$133,800.00
 Contract Amount: \$772,800.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$240,000.00
 Amended Amount: \$6,000.00
 Contract Amount: \$246,000.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$180,000.00
 Amended Amount: \$8,400.00
 Contract Amount: \$188,400.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Akili Academy/Crescent City Schools
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$492,000.00
Amended Amount: \$74,400.00
Contract Amount: \$566,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Karen Boudreaux
Contract Period: 02/01/2012 - 01/31/2015
Previous Amount: \$79,500.00
Amended Amount: \$25,500.00
Contract Amount: \$105,000.00
Fund: Federal Fund - Title III
Competitive Process: Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Blitch/Knevel Architects, Inc.
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,473,321.00
Amended Amount: \$15,433.60
Contract Amount: \$1,488,754.60
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$105,034.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Jacobs Project Management Company/CSRS
Consortium
Contract Period: 12/01/2013 - 11/30/2016
Previous Amount: \$23,590,758.00
Amended Amount: \$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 09/16/2010 - 09/16/2015
Previous Amount: \$944,413.20
Amended Amount: \$38,546.20
Contract Amount: \$982,959.40
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Waggonner and Ball Architects, APC
Contract Period: 08/15/2012 - 08/15/2015
Previous Amount: \$1,151,421.08
Amended Amount: \$5,500.00
Contract Amount: \$1,156,921.08
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014



**BOARD
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The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.

Top Secret

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda **Educator Effectiveness Committee** (Schedule 4)
Item 5.3.

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda **School Innovation and Turnaround Committee** (Schedule 5)
Item 5.4.

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.

Top Secret

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2. On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)

Agenda Item 3. On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.

Agenda Item 4. **Report by the State Superintendent of Education**

State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.

5.1.2

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.

5.1.3

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
 Amended Amount: \$133,800.00
 Contract Amount: \$772,800.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$240,000.00
 Amended Amount: \$6,000.00
 Contract Amount: \$246,000.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$180,000.00
 Amended Amount: \$8,400.00
 Contract Amount: \$188,400.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Akili Academy/Crescent City Schools
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$492,000.00
Amended Amount: \$74,400.00
Contract Amount: \$566,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Karen Boudreaux
Contract Period: 02/01/2012 - 01/31/2015
Previous Amount: \$79,500.00
Amended Amount: \$25,500.00
Contract Amount: \$105,000.00
Fund: Federal Fund - Title III
Competitive Process: Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Blitch/Knevel Architects, Inc.
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,473,321.00
Amended Amount: \$15,433.60
Contract Amount: \$1,488,754.60
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$105,034.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Jacobs Project Management Company/CSRS
Consortium
Contract Period: 12/01/2013 - 11/30/2016
Previous Amount: \$23,590,758.00
Amended Amount: \$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 09/16/2010 - 09/16/2015
Previous Amount: \$944,413.20
Amended Amount: \$38,546.20
Contract Amount: \$982,959.40
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Waggonner and Ball Architects, APC
Contract Period: 08/15/2012 - 08/15/2015
Previous Amount: \$1,151,421.08
Amended Amount: \$5,500.00
Contract Amount: \$1,156,921.08
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
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The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

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OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

(Motion continues on page 18)

- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

* * * * *

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

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Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



**BOARD
of
ELEMENTARY
and
SECONDARY
EDUCATION**

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of January 15, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

JANUARY 15, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on January 15, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:13 a.m. by Board President Chas Roemer and opened with a prayer by Mr. Danny Loar, Executive Director, Louisiana Conference of Catholic Bishops.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Dr. Judith Miranti, Ms. Kira Orange Jones, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford, Ms. Carolyn Hill, and Mr. Walter Lee were absent.

Dr. Charles S. Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Boffy, seconded by Mr. Guillot, the Board approved the minutes of December 4, 2013.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White stated that the final statewide tour to discuss career education efforts and career diploma implementation will begin next week. Past tours have provided two specific lessons: (1) the stigma that is often attached to career education must be removed, and (2) if real economic opportunity is to be offered to students who are not immediately going to a four-year university, we must ensure that the career education that is provided results in credentials that allow them to continue their education and to succeed in the workplace. Specific components of Jump Start will be proposed for public discussion, including 8th graders making the transition to high school; 9th and 10th grade curriculum, 11th and 12th grade curriculum, credentials that students can achieve in that time, rewards that school systems will accrue when students succeed in career education, and how a system of technical preparation can be funded so that students can be employed in Louisiana jobs.

(Continues on page 2)

The State Superintendent of Education introduced Daniel Eiland, who oversees the robotics program at Woodlawn High School in Baton Rouge, and invited all BESE members and the audience to visit the robotics display in the lobby.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the authorization of the following course providers for Course Choice, as recommended by the LDE:

Academic Access, LLC;
ACT Mastery;
Amplify;
Benjamin Franklin High School;
D'Jay's School of Beauty;
eLearning Center, LLC;
J. Schneider Associates, Ltd.;
Mosaica Online;
Nelson Academy of Agricultural Sciences Online;
Pelican Virtual School;
Penn Foster;
PresenceLearning;
Raymond Career College;
SkillBott, Inc.;
Sparx Welding and Technology Institute, LLC;
University of Nebraska High School; and
US Heritage Powersports.

5.1.2

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the Test Security Irregularities Report for the 2012-2013 school year.

5.1.3 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2318. The College and Career Diploma; §2333. Art; §2341. English; §2345. Foreign Language; §2353. Mathematics; §2355. Music; §2361. Science; §2363. Social Studies; and §2369. Theatre Arts, as recommended by the LDE.

5.1.4 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved the Louisiana School for Math, Science, and the Arts (LSMSA) courses listed below as equivalent courses for the College Diploma and the Taylor Opportunity Program for Students (TOPS):

Course Code	LSMSA Course	Subject Substitution
120504	LSMSA TOPICS IN AM. AND BRIT. LIT. (EN304)	ENGL
120520	LSMSA WORLD LITERATURE (EN 311)	ENGL
160401	LSMSA ACCELERATED COLLEGE ALGEBRA (MA 121)	MATH
160402	LSMSA CALCULUS II (MA 403)	MATH
160409	LSMSA CALCULUS III (MA 503)	MATH
160403	LSMSA CALCULUS III (MA 504)	MATH
160404	LSMSA CHAOS THEORY (MA 461)	MATH
160400	LSMSA COLLEGE ALGEBRA (MA 120)	MATH
160407	LSMSA DIFFERENTIAL EQUATIONS (MA 523)	MATH
160406	LSMSA LINEAR ALGEBRA (MA 443)	MATH
160408	LSMSA MODERN ALGEBRA (MA 421)	MATH
160405	LSMSA TOPOLOGY (MA 422)	MATH
160410	LSMSA VECTOR CALCULUS	MATH
150403	LSMSA ACCELERATED CHEMISTRY II (CH 201L)	SCIE
150404	LSMSA ACCELERATED CHEMISTRY II (CH 202L)	SCIE
150408	LSMSA ACCELERATED CHEMISTRY II (CH 211L)	SCIE
150409	LSMSA ACCELERATED CHEMISTRY II (CH 212L)	SCIE
150710	LSMSA ACCELERATED PHYSICS I (PH 101L)	SCIE
150711	LSMSA ACCELERATED PHYSICS I (PH 102L)	SCIE
150712	LSMSA ACCELERATED PHYSICS I (PH 111L)	SCIE
150713	LSMSA ACCELERATED PHYSICS I (PH 112L)	SCIE
150714	LSMSA ACCELERATED PHYSICS II (PH201L)	SCIE
150715	LSMSA ACCELERATED PHYSICS II (PH202L)	SCIE

(Motion continues on page 4)

150716	LSMSA ACCELERATED PHYSICS II (PH211L)	SCIE
150722	LSMSA ACCELERATED PHYSICS II (PH212L)	SCIE
150717	LSMSA ACCELERATED PHYSICS III (PH301L)	SCIE
150718	LSMSA ACCELERATED PHYSICS III (PH302L)	SCIE
150719	LSMSA ACCELERATED PHYSICS III (PH311L)	SCIE
150720	LSMSA ACCELERATED PHYSICS III (PH312L)	SCIE
150405	LSMSA ANALYTICAL CHEMISTRY (CH 313L)	SCIE
140204	LSMSA ASTROPHYSICS (PH306L)	SCIE
150317	LSMSA BOTANY (BI 253L)	SCIE
150320	LSMSA BOTANY (BI 263)	SCIE
150314	LSMSA CELL AND GENETICS (BI 201L)	SCIE
150709	LSMSA CONCEPTUAL PHYSICS (PH 110L)	SCIE
150318	LSMSA ECOLOGY (BI 264L)	SCIE
140203	LSMSA ELECTRONICS (PH305L)	SCIE
150315	LSMSA EVOLUTION AND BIODIVERSITY (BI 202L)	SCIE
150708	LSMSA GENERAL PHYSICS (PH 210L)	SCIE
140201	LSMSA INTRODUCTION TO ASTRONOMY (PH203L)	SCIE
150316	LSMSA MICROBIOLOGY (BI 231L)	SCIE
150319	LSMSA MOLECULAR AND CELLULAR BIOLOGY (BI 241)	SCIE
140202	LSMSA OBSERVATIONAL ASTRONOMY AND ASTRO PHOTOGRAPHY (PH303L)	SCIE
150721	LSMSA PHYSICS WITH CALCULUS (PH310L)	SCIE
150406	LSMSA POLYMER CHEMISTRY (CH 314L)	SCIE
150407	LSMSA POLYMER CHEMISTRY (CH 316)	SCIE
222012	LSMSA ABRAHAMIC FAITHS (SS244E)	SOCS
220013	LSMSA AMERICAN RELIGIOUS HISTORY (AH 244K)	SOCS
220432	LSMSA AMERICAN WEST (AH 244T)	SOCS
220441	LSMSA ANCIENT AND MEDIEVAL HISTORY (EH 121)	SOCS
220424	LSMSA CONSTITUTIONAL DEVELOPMENT (PS212)	SOCS
220445	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244E)	SOCS
220426	LSMSA EMERGENCE OF MODERN RUSSIA (IS 244F)	SOCS
220433	LSMSA ERA OF FRANKLIN D. ROOSEVELT (AH 244X)	SOCS
220423	LSMSA EUROPEAN INTELLECTUAL HISTORY SINCE 1600	SOCS
220617	LSMSA GENDER STUDIES (SS244C)	SOCS
220422	LSMSA HISTORY OF MODERN BRITAIN (EH232)	SOCS
220439	LSMSA HISTORY OF THE MODERN MIDDLE EAST (WH 244H)	SOCS

(Motion continues on page 5)

220421	LSMSA HISTORY OF TUDOR STUART ENGLAND (EH231)	SOCS
220615	LSMSA INTRODUCTION TO ETHICS (SS215)	SOCS
222003	LSMSA INTRODUCTION TO PHILOSOPHY (SS214)	SOCS
222002	LSMSA INTRODUCTION TO PSYCHOLOGY (SS144)	SOCS
220435	LSMSA LEGAL HISTORY CONSTITUTIONAL LAW (AH 250AS)	SOCS
220437	LSMSA LEGAL HISTORY STREET LAW (AH 250C)	SOCS
220436	LSMSA LEGAL HISTORY: BIOETHICS AND THE LAW (AH 250B)	SOCS
220416	LSMSA MILITARY HISTORY OF THE USI (AH212)	SOCS
220417	LSMSA MILITARY HISTORY OF THE USII (AH213)	SOCS
220442	LSMSA MODERN HISTORY (EH 122)	SOCS
220428	LSMSA MODERN PRESIDENTIAL POLITICS (AH 244D)	SOCS
220430	LSMSA POST WW II AMERICA (AH 244H)	SOCS
222011	LSMSA RELIGIONS OF ASIA (SS244D)	SOCS
220419	LSMSA SELECTED TOPICS IN AMERICAN HISTORY (AH 244)	SOCS
220425	LSMSA SELECTED TOPICS IN WORLD HISTORY (WH244)	SOCS
220438	LSMSA STRATEGY & DIPLOMACY: GREAT POWERS SINCE 1789 (WH244C)	SOCS
220418	LSMSA THE CIVIL WAR (AH221)	SOCS
220427	LSMSA THE NEW SOUTH (IS 244C)	SOCS
220431	LSMSA THE US IN 1968 (AH 244S)	SOCS
220420	LSMSA TOPICS IN AMERICAN LEGAL HISTORY (AH250)	SOCS
220434	LSMSA TOPICS IN AMERICAN SOCIAL AND URBAN HISTORY (AH 244Y)	SOCS
220443	LSMSA TOPICS IN EUROPEAN HISTORY (EH 244)	SOCS
220616	LSMSA TOPICS IN SOCIOLOGY (SS244)	SOCS
220444	LSMSA TOPICS IN WORLD HISTORY (WH 244)	SOCS
220440	LSMSA US FOREIGN POLICY IN THE 20TH CENTURY (AH 251)	SOCS
220429	LSMSA US IN SOUTHEAST ASIA (AH 244F)	SOCS

5.1.5

On motion of Dr. Miranti, seconded by Ms. Boffy, the Board received the unofficial minutes of the Special Education Advisory Panel meeting held December 19, 2013.

- 5.1.6 On motion of Dr. Miranti, seconded by Ms. Boffy, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement; §505. Other Placement Requirements; adding §702. Promotion of LAA 1 Eligible Students; renumbering §703. Retention to §704. Retention; adding §703. Promotion of LAA 2 Eligible Students; and §707. Exceptions to High Stakes Policy, relative to the promotion decisions of LAA 2 eligible students, as presented by the LDE, amending §703.A. to read:

- A. The IEP Team shall determine the promotion of each fourth and eighth grade student who is eligible for LAA 2 and does not meet the criteria for promotion on statewide testing based on policies contained in the local pupil progression plan. The promotion decision shall meet the procedural requirements in subsection B and shall be based on the consideration of information concerning each student's educational needs, including progress toward meeting annual IEP goals, performance on statewide assessment, and the general academic achievement and functional performance of the student.

and amending §703.B.1. to read:

1. The IEP Team shall meet once between the beginning of the last grading period of the previous school year and the end of the first grading period of the current school year to review and, if necessary, revise the student's IEP. The revised IEP shall include measurable annual goals, benchmarks, and short-term objectives in each content area for which the student is eligible for LAA 2.

Dr. Beebe was recorded as being opposed to the motion.

Agenda
Item 5.2.

Administration and Finance Committee

(Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.2 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

- 5.2.3 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on RSD contracts of \$50,000 and under approved by the State Superintendent of Education.
- 5.2.4 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report on in-state travel for Board members to be reimbursed from the BESE budget.
- 5.2.5 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the quarterly report of expenditures and budget balances of 8(g) projects for FY 2013-2014.
- 5.2.6 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board ratified the Board President's submission of required legislative reports to the Louisiana Legislature pursuant to House Concurrent Resolution 133 and House Resolution 118 of the 2013 Regular Legislative Session:
- HCR 133, which urges and requests the Department of Health and Hospitals, the Department of Children and Family Services, and BESE to study jointly the feasibility of coordinating state mental health and counseling resources for the purpose of providing support to public school students.
 - HR 118, which urges and requests BESE to study issues relative to the implementation of the state's teacher evaluation program.
- 5.2.7 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the update report on the Special School District budget.

School and District Innovations - Competitive

- 5.2.8 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Believe and Succeed: New School Development
Amount:	\$1,929,935
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	Federal

Purpose: These funds provide for the creation of new schools to serve students who currently attend "D" and "F" schools by:

(Motion continues on page 8)

1. encouraging proven school operators to provide new, high-quality educational options for students in low-performing schools, and
2. providing for the training or planning period for high-potential school leaders who intend to lead a school focused on serving this student population.

Basis of Allocation: Funding will come from the federal 1003(a), Public Charter School Program and Race to the Top grants and from 8(g) New Schools Incubation. Recipients of funds submitted competitive Believe and Succeed grant proposals to the LDE and were evaluated using a rubric and determined eligible to receive funds by a review committee.

Management and Finance - Competitive

- 5.2.9 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation:	Early Childhood Programs: Louisiana Early Education Program (LEEP)
Amount:	\$110,000
Funding Period:	01/01/2014 - 9/30/2014
Source of Funds:	Federal

Purpose: This is year two of a three year grant. The purpose of the Preschool LEEP (Louisiana Early Education Program) Summer Institute is to provide certification and training opportunities for early intervention specialists and/or teachers seeking certification in early intervention. The Early Intervention (EI) certification is required for Louisiana teachers who provide services to children with developmental delays from birth through kindergarten. These EI specialists work very closely with regular education preschool teachers as well as the families to ensure the children with disabilities are provided a free appropriate public education, affording them the opportunity to develop to their fullest potential, and that this education will be provided by qualified individuals. A review of current data indicates a shortage of certified teachers in the field of early intervention/early childhood special education. Currently reported for this school year, there are approximately 574 Early Intervention (EI) teachers across the state and, of that number, there are 168 (29.3%) who are not certified in the field. There is a great need for teachers with certification to teach children with developmental delays from birth through kindergarten especially in our more rural areas. By providing funds to two university applicants, more teachers can acquire the courses required to be Early Intervention certified.

(Motion continues on page 9)

Basis of Allocation: This allocation for year two of the LEEP grant was chosen by a Competitive Request for Applications (RFAs) in FY 2012. The grant is being allocated to Southeastern Louisiana State University. This university will work with the University of Louisiana-Monroe to offer course(s) for teachers in northern Louisiana. The applicant must offer courses during the summer in the traditional classroom format as well as offer online courses. Southeastern Louisiana State University will keep the cost of the courses to a minimum so that teachers can obtain the required courses for certification with little or no out-of-pocket expenses.

Management and Finance - Other

- 5.2.10 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following allocation:

Allocation: USDA Team Nutrition Training Grant
Amount: \$40,860
Funding Period: 01/01/2012 - 06/30/2014
Source of Funds: Federal

Purpose: The School Food Authority from one local educational agency (LEA) agreed to work with a chef from the John Folse Culinary Institute at Nicholls State University (NSU) to create a set of cycle menus that complied with the USDA HealthierUS School Challenge (HUSSC) initiative. Two LEAs agreed to submit applications for the USDA HealthierUS School Challenge award on behalf of schools in the LEAs.

Basis of Allocation: Districts were selected based on meeting criteria set forth by a USDA Team Nutrition Training Grant Proposal. Terrebonne Parish will work directly with a chef at the John Folse Culinary Institute at Nicholls State University to develop menus that meet USDA HealthierUS School Challenge (HUSSC) criteria. St. Tammany Parish was selected based on the capability of the district to meet the requirements of the grant. The USDA Grant RFP required states to guarantee that at least 50 schools would submit HUSSC applications. Terrebonne Parish will submit an application for the bronze level award and receive \$735 per school. St. Tammany Parish will submit an application for the Gold of Distinction award and will receive \$872 per school.

- 5.2.11 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: MMCS Consulting, LLC
Contract Period: 03/03/2014 - 03/03/2017
Contract Amount: \$1,210,712
Fund: State General Funds
Competitive Process: Competitive

Description of Service: This contract provides services to improve, assess, and measure student achievement in Louisiana schools.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.12 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Cooper and Kirk, LLC
Contract Period: 8/26/2013 - 8/25/2016
Previous Amount: \$150,000.00
Amended Amount: \$500,000.00
Contract Amount: \$650,000.00
Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The LDE counsel shall provide legal services and representation for the LDE and the State Superintendent of Education in litigation captioned Brumfield v. Dodd, United States District Court for the Eastern District of Louisiana, Civil Action No. 71-1316.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.13 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract amendment:

Contractor: Faircloth Law Group
Contract Period: 9/1/2012 - 8/31/2015
Previous Amount: \$20,000.00
Amended Amount: \$250,000.00
Contract Amount: \$270,000.00

(Motion continues on page 11)

Fund: State General Funds
Competitive Process: Non-competitive

Description of Service: The Department of Education is seeking to defend the Student Scholarships for Educational Excellence and the Minimum Foundation Program in litigation challenging the implementation of those programs.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.14 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following LDE contract:

Contractor: Hogan Lovells
Contract Period: 11/29/2013 - 11/28/2016
Contract Amount: \$125,000.00
Fund: State
Competitive Process: Non-competitive - Professional service

Description of Service: The State is seeking to prevail in the litigation captioned *Berry et al. v. Pastorek et al.*, United States District Court for the Eastern District, Civil Action No. 10-4049C(4), in which the Southern Poverty Law Center is seeking to bring a class action suit against the state, alleging failure of the state to adequately ensure that students in Orleans Parish received appropriate special education services.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.15 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 2 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.16 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report from Education Finance staff concerning Type 5 charter school budgets and expenditure reports, including irregularities and concerns.

- 5.2.17 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 01/15/2014 - 01/15/2017

(Motion continues on page 12)

Contract Amount: \$296,940.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of McDonogh #32 Elementary School.

- 5.2.18 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Eskew+Dumez+Ripple, APC
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,501,954.00
Amended Amount: \$101,399.00
Contract Amount: \$1,603,353.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment breaks up the contract into two separate projects with a new project number for the added project. It adjusts the designer's fee for basic services based on the actual low bidder's price from bids received for McDonogh #42 Elementary School Renovation. It also adjusts the designer's fee for basic services based on the final construction price for Test Pile Program at McDonogh #42 Elementary School Renovation.

- 5.2.19 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: Gordon, Arata, McCollam, Duplantis, and Eagan, LLP
Contract Period: 02/01/2014 - 01/31/2017
Contract Amount: \$800,000.00
Fund: Federal - Lexington Insurance Proceeds
Competitive Process: Non-Competitive - True Professional

Description of Service: The contractor will continue to provide professional legal advice and litigation expertise to the RSD regarding construction issues related to the School Facilities Master Plan.

- 5.2.20 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: McMillian's First Steps Community
Development Corporation
Contract Period: 08/01/2013 - 05/31/2014
Previous Amount: \$41,220.00
Amended Amount: \$41,220.00
Contract Amount: \$82,440.00
Fund: State - Cecil J. Picard LA4
Competitive Process: Competitive RFP/Social Service

Description of Service: The contractor will provide care and educational service to 4-year-olds in a child-centered program directed toward the development of cognitive, social, emotional, language, literacy, math, and motor skills.

- 5.2.21 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: NY Associates, Inc.
Contract Period: 12/09/2010 - 12/09/2014
Previous Amount: \$95,478.00
Amended Amount: \$38.00
Contract Amount: \$95,516.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for a change in the contract price based on the project's final construction price.

- 5.2.22 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$116,835.00
Fund: IAT - FEMA
Competitive Process: Competitive

(Motion continues on page 14)

Description of Service: This project consists of kitchen improvements at various RSD schools, including Walter L. Cohen High School; Andrew Jackson Elementary School; Henry Allen Elementary School; Dr. Martin Luther King Jr. Charter School; Sarah T. Reed High School; and Dwight D. Eisenhower Elementary School.

- 5.2.23 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: NY Associates, Inc. Consulting Engineers,
Architects, and Planners
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$324,260.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Lafayette Elementary School.

- 5.2.24 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$204,015.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Fischer Elementary School.

- 5.2.25 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$232,753.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Gaudet Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract:

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$113,614.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of kitchen improvements at various RSD schools, including McDonogh #28 Elementary School; A. D. Crossman Elementary School; Albert Wicker Elementary School; Gentilly Terrace Elementary School; and Benjamin Banneker Elementary School.

- 5.2.27 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: SCNZ Architects, LLC
Contract Period: 01/15/2014 - 01/15/2017
Contract Amount: \$155,901.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the refurbishment of Johnson Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract :

Contractor: Scott Ray and Associates, Inc.
Contract Period: 01/15/2014 - 6/30/2014
Contract Amount: \$63,000.00
Fund: Federal - Safe Schools Healthy Students Grant
Competitive Process: Non-Competitive/Social Service

Description of Service: The contractor is to provide formative and summative feedback addressing the five elements of the Safe Schools Healthy Students Initiative grant (violence, substance abuse, academics, mental health and social skills), collection and analysis of data, and the completion of federal reports.

- 5.2.29 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects + Fanning Howey, A
Joint Venture
Contract Period: 01/18/2012 - 01/18/2015
Previous Amount: \$1,909,248.44
Amended Amount: \$22,000.00
Contract Amount: \$1,931,248.44
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for additional structural design services for a new three-section Elementary School at Fisk-Howard School.

- 5.2.30 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following RSD contract amendment:

Contractor: Yeates and Yeates Architects, LLC
Contract Period: 06/15/2007 - 06/15/2014
Previous Amount: \$2,491,580.01
Amended Amount: \$54,214.55
Contract Amount: \$2,545,794.56
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services based on the final construction contract amount, less the value of any change orders attributable to the designer's errors or omissions, for the new Fannie C. Williams Elementary School.

- 5.2.31 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received an update on RSD Capital Projects from November 2013 including RSD-OPSB Phase 1 Monthly Summary for November 2013; RSD-OPSB Phase 2 Monthly Summary for November 2013; Superintendents' Report for November 2013; BESE/RSD Open Contracts as of December 6, 2013; and OPSB Open Contracts as of December 6, 2013.

- 5.2.32 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the:
- a. 8(g) Statewide allocation for FY 2014-2015 of \$10,200,000;
 - b. 8(g) Local and Statewide Competitive allocation for FY 2014-2015 of \$1,703,000; and
 - c. 8(g) Uncategorized/special projects allocation for FY 2014-2015 of \$1,000,000.

Ms. Orange Jones recused herself from voting on this item.

- 5.2.33 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board directed legal counsel to take necessary action to seek clarification regarding the consent judgment in the Victor S. Hodgkins, et al. vs. the Louisiana State Board of Elementary and Secondary Education, in light of subsequent Supreme Court jurisprudence.

- 5.2.34 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the report in response to Act 378 and Senate Resolution 167 of the 2013 Regular Session of the Louisiana Legislature relative to the selection and approval processes for textbooks and other instructional materials in public schools and the further integration of e-books and the implementation of cloud technology.

- 5.2.35 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
1. approved the proposed framework for the annual evaluation of the State Superintendent of Education; and
 2. deferred conducting the State Superintendent of Education's evaluation until April 2014.

- 5.2.36 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board approved the following BESE position statements for the 2014 Legislative Session:

- Providing school leaders and superintendents the autonomy to make decisions that respond to local needs without the hindrance of undue red tape and bureaucracy.
- Continued implementation of the Compass evaluation system, and maintaining effectiveness as the leading indicator in certification, staffing, and compensation decisions.

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- Continued implementation of rigorous Common Core State Standards and courses of study aligned with college and workplace expectations, as measured by high-quality assessments aligned to such standards and expectations.
- Expanded opportunities for high school students to access career training aligned to regional workforce demands that enable them to enter the workforce and continue their career development through specialized training and postsecondary education.
- The ability of local school districts to make curriculum decisions and select instructional materials that support students' mastery of academic standards.
- The ability of local school districts to leverage technology resources to enhance teaching and learning and to prepare students to be technology proficient and competitive in the digital age.
- Maintaining a system of high-quality and accountable educational options for students and families, and a funding system supportive of educational choice so that every child may be afforded an equal opportunity to develop to his or her full potential.
- Ongoing phase-in of a high-quality, comprehensive, and integrated early childhood education system that focuses on kindergarten readiness and accountability.
- Enabling districts and schools to take the actions necessary to provide for the safety of all students and staff.
- Retaining its role as Louisiana's elementary and secondary education policymaking body.

Further, the Board directed the BESE executive director, in consultation with the Board officers, to use the 2014 position statements to determine whether or not BESE will support specific legislation and ensure the Board's positions are consistently represented despite any amendments that may alter the original intent of any particular bill.

5.2.37 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:

- a. received the report of the Minimum Foundation Program (MFP) Task Force; and
- b. adopted the recommendations from the Minimum Foundation Program Task Force.

- 5.2.38 On motion of Mr. Guillot, seconded by Ms. Boffy, the Board:
- a. approved the report, which serve as the Board's response to HR 148 from the 2013 Legislative Session, which urged and requested BESE to convene a study group to examine issues relative to the Minimum Foundation Program (MFP) formula; and
 - b. directed the LDE to submit the report of the MFP Task Force's findings and recommendations to the appropriate legislative bodies.

Agenda Item 5.3. **Minimum Foundation Program (MFP) Public Hearing** (Schedule 4)

On motion of Mr. Guillot, seconded by Ms. Boffy, the Board received the minutes of the Minimum Foundation Program (MFP) Public Hearing meeting held January 14, 2014.

Agenda Item 5.4. **Educator Effectiveness Committee** (Schedule 5)

- 5.4.1 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved the proposal for studying the accountability and evaluation systems, including the value-added model.
- 5.4.2 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board approved, as a Notice of Intent, revisions to Bulletin 996, *Standards for Approval of Teacher and/or Educational Leader Preparation Programs*: §105. State Adoption of National Accreditation Standards; §107. The Partnership Agreements; §307. Level III Approval; §701. Introduction; and §1301. Acronyms.
- 5.4.3 On motion of Ms. Orange Jones, seconded by Dr. Miranti, the Board authorized the State Superintendent of Education to sign a seven-year partnership agreement between Louisiana and the Council for Accreditation of Educator Preparation (CAEP) to conduct joint state program approval and CAEP accreditation reviews.

Agenda Item 5.5. **School Innovation and Turnaround Committee** (Schedule 6)

- 5.5.1 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board received a status report on Types 2, 4, and 5 charter schools.

- 5.5.2 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Louisiana Key Academy Charter School, operated by Louisiana Key Academy, to discontinue kindergarten from the school until the 2017-2018 school year, and to clarify the school's mission-specific admission requirements.
- 5.5.3 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for material amendments to the charter governing Lycee Francais de la Nouvelle-Orleans, operated by LFNO, Inc., to remove eighth grade from the school's contract, to delay the opening of ninth grade until the 2015-2016 school year, to increase its kindergarten enrollment from 100 to 152 students, and to return the French proficiency requirement at the first grade level.
- 5.5.4 On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the request for a material amendment to the charter governing Northshore Charter School, operated by Northshore Charter Schools, Inc., to enroll students in fifth grade in the fall of 2014.

Agenda
Item 6.

Received and/or Referred

Agenda
Item 6.1.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Jackson Parish School Board requesting removal of this school district and other school districts in Louisiana from the implementation of Common Core State Standards (CCSS) and Partnership for Assessment of Readiness for College and Careers (PARCC) testing. (Schedule 7)

Agenda
Item 6.2.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Calcasieu Parish School Board requesting a multi-year Common Core Transition period, delay of the implementation of PARCC during the multi-year transition period, and removal of this district and other school districts in Louisiana from being negatively impacted due to the implementation of PARCC testing. (Schedule 8)

Agenda
Item 6.3.

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board received the Resolution from the Orleans Parish School Board urging and requesting that BESE and RSD assign the Bradley Elementary School facility, upon its completion, to Orleans Parish School Board for use by the faculty and students of Mary McLeod Bethune Elementary School. (Schedule 9)

With no further business to come before the Board, the meeting was adjourned at 9:24 a.m.

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BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2.	On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)
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Agenda Item 3.	On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.
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Agenda Item 4.	<u>Report by the State Superintendent of Education</u>
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State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

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On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

- 5.1.1 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.
- 5.1.2 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.
- 5.1.3 On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

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Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

- 5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.
- 5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

- 5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

- 5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.
- 5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.
- 5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

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Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
Amended Amount: \$133,800.00
Contract Amount: \$772,800.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$240,000.00
Amended Amount: \$6,000.00
Contract Amount: \$246,000.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$180,000.00
Amended Amount: \$8,400.00
Contract Amount: \$188,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Akili Academy/Crescent City Schools
Contract Period:	07/01/2013 - 06/30/2014
Previous Amount:	\$492,000.00
Amended Amount:	\$74,400.00
Contract Amount:	\$566,400.00
Fund:	Federal - Title IV - 21 st Century Community Learning Centers (21 st CCLC)
Competitive Process:	Competitive/21 st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor:	Karen Boudreaux
Contract Period:	02/01/2012 - 01/31/2015
Previous Amount:	\$79,500.00
Amended Amount:	\$25,500.00
Contract Amount:	\$105,000.00
Fund:	Federal Fund - Title III
Competitive Process:	Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Blitch/Knevel Architects, Inc.
Contract Period:	03/09/2012 - 03/09/2015
Previous Amount:	\$1,473,321.00
Amended Amount:	\$15,433.60
Contract Amount:	\$1,488,754.60
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor:	Byron J. Stewart and Associates, APC Architects and Planners
Contract Period:	03/07/2014 - 03/07/2017
Contract Amount:	\$105,034.00
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Jacobs Project Management Company/CSRS Consortium
Contract Period:	12/01/2013 - 11/30/2016
Previous Amount:	\$23,590,758.00
Amended Amount:	\$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	VergesRome Architects, APAC
Contract Period:	09/16/2010 - 09/16/2015
Previous Amount:	\$944,413.20
Amended Amount:	\$38,546.20
Contract Amount:	\$982,959.40
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor:	Waggonner and Ball Architects, APC
Contract Period:	08/15/2012 - 08/15/2015
Previous Amount:	\$1,151,421.08
Amended Amount:	\$5,500.00
Contract Amount:	\$1,156,921.08
Fund:	IAT - FEMA
Competitive Process:	Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda **Educator Effectiveness Committee** (Schedule 4)
Item 5.3.

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda **School Innovation and Turnaround Committee** (Schedule 5)
Item 5.4.

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

* * * * *

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.

Top Secret

Do not accidentally email to WikiLeaks



BOARD of ELEMENTARY and SECONDARY EDUCATION

The Board of Elementary and Secondary Education shall provide leadership and create policies for education that expand opportunities for children, empower families and communities, and advance Louisiana in an increasingly competitive global market.

OFFICIAL BOARD MINUTES

Meeting of March 7, 2014

LOUISIANA STATE BOARD OF ELEMENTARY AND SECONDARY EDUCATION

MARCH 7, 2014

The Louisiana Purchase Room
Baton Rouge, LA

The Louisiana State Board of Elementary and Secondary Education met in regular session on March 7, 2014, in the Louisiana Purchase Room, located in the Claiborne Building in Baton Rouge, Louisiana. The meeting was called to order at 9:17 a.m. by Board President Chas Roemer and opened with a prayer by Ms. Terry Johnson, Bossier Parish School System.

Board members present were Dr. Lottie Beebe, Ms. Holly Boffy, Mr. Jim Garvey, Mr. Jay Guillot, Ms. Carolyn Hill, Mr. Walter Lee, Dr. Judith Miranti, Mr. Chas Roemer, and Ms. Jane Smith.

Ms. Connie Bradford and Ms. Kira Orange Jones were absent.

Dr. Charlie Michel, Lafourche Parish School System, led the Pledge of Allegiance.

Agenda Item 2. On motion of Mr. Garvey, seconded by Ms. Boffy, the Board approved the agenda, as printed and disseminated. (Schedule 1)

Agenda Item 3. On motion of Ms. Smith, seconded by Ms. Boffy, the Board approved the minutes of January 15, 2014.

Agenda Item 4. **Report by the State Superintendent of Education**

State Superintendent of Education John White provided an update on the intense and increased support that the LDE is providing to teachers to assist with new academic expectations. The LDE has established the following support structures: (1) network teams are working directly with superintendents; (2) district planning teams and district planning guides have been established in every district; and (3) teacher leader teams are doubling to 4,000 next year. Sample test items are being released. The curriculum package for next year is being released. Next year's assessment guides will be produced in the following weeks.

On Point of Personal Privilege, Ms. Hill recognized the Capitol Senior High School Alumni Association for its dedication to the school and its students throughout several transitions, and presented a Certificate of Appreciation to Mr. W. T. Winfield.

Agenda
Item 5.

Board Committee Reports

Agenda
Item 5.1.

Academic Goals and Instructional Improvement Committee

(Schedule 2)

5.1.1

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Accountability Commission meetings held January 9, 2014, and January 27, 2014.

5.1.2

On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the minutes of the Special Education Advisory Panel meeting held February 20, 2014.

5.1.3

On motion of Dr. Beebe, seconded by Mr. Garvey, the Board approved, as a Notice of Intent, revisions to Bulletin 119, *Louisiana School Transportation Specifications and Procedures*: §2509. Used School Buses, as amended and presented by the LDE.

Public comments were received on the following Academic Goals and Instructional Improvement Committee agenda item:

Agenda Item 3.2., "Consideration of policy recommendations relative to the implementation of the Jump Start career education program."

Support: None.

Oppose: None.

Information Only/Other: Ms. Debra Schum, Louisiana Association of Principals.

- 5.1.4 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, the creation of Bulletin 138, *Jump Start Program*: §101. Overview, §201. Jump Start Program Authorization, §301. General Provisions, and §303. Jump Start Instructional Staff, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, the creation of §305. Student Participation in Jump Start Programs, as amended and presented.

- 5.1.5 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §409. Calculating a 9-12 Assessment Index, and §613. Calculating a Graduation Index, as presented by the LDE.

- 5.1.6 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*: §501. Introduction; adding a new §505. Career and Technical Certificate Types Issued after September 1, 2014; renumbering and renaming the original §505. to §506. CTTIE-1 and CTTIE-2 Certificate Eligibility Requirements; adding a new §507. CTTIE Areas of Specialization; renumbering and renaming the original §507. to §509. CTTIE-1 Certificates Renewal Guidelines for certificates initially issued prior to September 1, 2014; deleting the original §509. CTTIE-2 Certificates Renewal Guidelines; and §511. Process for Reinstating Lapsed CTTIE Certificates, as presented by the LDE.

Further, the Board approved, as a Notice of Intent, revisions to §504. Career and Technical Certificate Types Issued after July 1, 2006, as amended and presented.

- 5.1.7 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 118, *Statewide Assessment Standards and Practices*: §701. Overview of Assessment Programs in Louisiana, §2209. WorkKeys, and §3501. Approved Home Study Program Students, as presented by the LDE.

- 5.1.8 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 741, *Louisiana Handbook for School Administrators*: §2317. High Schools and §2318. The College Diploma, as presented by the LDE.

5.1.9 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1566, *Pupil Progression Policies and Procedures*: §503. Regular Placement, as presented by the LDE.

5.1.10 On motion of Dr. Miranti, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 111, *The Louisiana School, District, and State Accountability System*: §301. School Performance Score Goal; §303. Transition from Fall 2013 to Spring 2015; §413. Dropout/Credit Accumulation Index Calculations; §517. Inclusion of Schools; §521. Pairing/Sharing of Schools with Insufficient Test Data; §603. Determining a Cohort for a Graduation; §611. Documenting a Graduation Index; §1301. Reward Eligibility; §2301. Schools Requiring Reconstitution/Alternate Governance Plans; §3101. Appeals/Waivers and Data Certification Processes; §3301. Inclusion of New Schools; §3303. Reconfigured Schools; §4101. Valid Data Considerations; §4301. Inclusion of All Districts; and §4317. District Accountability Data Corrections, as presented by the LDE.

Dr. Beebe was recorded as being opposed to the motion.

5.1.11 On motion of Dr. Miranti, seconded by Mr. Lee, the Board received the Summary of Public Comments and Agency Response regarding revisions to Bulletin 135, *Health and Safety*: Chapter 5. Injury Management Program Rules for Serious Sports Injuries and Chapter 7: Glossary, and directed BESE staff to proceed with the final adoption of the January 20, 2014, Notice of Intent regarding revisions to Bulletin 135, *Health and Safety*, Chapters 5 and 7.

Agenda Item 5.2. **Administration and Finance Committee** (Schedule 3)

5.2.1 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on 8(g) monitoring visits conducted by Board staff.

5.2.2 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the quarterly report from the LDE Director of Internal Audit.

5.2.3 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on LDE contracts of \$50,000 and under approved by the State Superintendent of Education.

5.2.4 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the reports requested by the Minimum Foundation Program (MFP) Task Force pertaining to the regulations governing students with dyslexia and student access to technology.

5.2.5 On motion of Mr. Guillot, seconded by Mr. Lee, the Board ratified the Board President's submission of the value-added assessment model report to the House Committee on Education and the Senate Committee on Education.

Public comments were received on the following Administration and Finance Committee agenda item:

Agenda Item 4.1., "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.2.6 On motion of Mr. Guillot, seconded by Mr. Garvey, the Board deferred until a Special Board Meeting to be held during the week of March 10-14, 2014: "Consideration of the Minimum Foundation Program (MFP) Formula for FY 2014-2015."

5.2.7 On motion of Mr. Guillot, seconded by Mr. Lee, the Board, in recognition that the proposed 2014-2015 MFP formula does not include funding for early childhood education, committed to developing a strategy of equitable early childhood education funding in future fiscal years and supports legislation throughout the 2014 Regular Legislative Session that allows for the consideration of 4-year-old pre-kindergarten education as a component of elementary and secondary education.

5.2.8 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised 8(g) program and budget for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.9 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Early Childhood Literacy Program (LDE) (S069), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.10 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Compass (LDE) (S067), for FY 2013-2014.

Dr. Beebe was recorded as being opposed to the motion.

- 5.2.11 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, Expanding High School Choice (LDE) (S073), for FY 2013-2014.

Dr. Beebe recused herself from voting on this item.

- 5.2.12 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the revised program and budget for the 8(g) statewide program, New Schools Incubation Program (LDE) (S074), for FY 2013-2014.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

School and District Innovations - Other

- 5.2.13 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation:	RSD Charter School Transformation
Amount:	\$250,000.00
Funding Period:	07/01/2013 - 06/30/2014
Source of Funds:	IAT - 8(g)

Purpose: The purpose of these funds is to support RSD transformation activities.

Basis of Allocation: The LDE supports the efforts of the RSD to create an environment with the conditions necessary for charter schools to succeed and to support the transformation process for low-performing schools.

(Motion continues on page 7)

Funds may be used to provide professional development, stabilize school staffing during the transformation process, provide for additional staffing resources needed to successfully transition a direct-run school to a charter school, and other activities that support the development of a high performing charter school environment.

Dr. Beebe recused herself from voting on this item.

Departmental Support - Other

- 5.2.14 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Educator Leader Cadre Substitute Reimbursement
Amount: \$1,893.36
Funding Period: 10/01/2013 - 12/13/2014
Source of Funds: Federal

Purpose: The purpose of the Teacher Leader Advisors is to develop an understanding of the changes required of Common Core and Compass, including reviewing and creating materials for implementation, serving as a Common Core expert, assisting in building a growing network of teacher leaders throughout the state, and attending face-to-face meetings to provide recommendations and feedback on resources and tools.

Basis of Allocation: Allocations to school districts are to reimburse the districts for the substitutes paid to work while the Teacher Leader Advisors met in Baton Rouge on October 15-16, 2013, and December 13, 2013, to begin their work for the program.

Dr. Beebe recused herself from voting on this item.

- 5.2.15 **Office of Management and Finance – Competitive**

On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following allocation:

Allocation: Early Childhood Community Network Pilots
Amount: \$676,666.67
Funding Period: 03/08/2014 - 06/30/2014
Source of Funds: State - IAT

(Motion continues on page 8)

Purpose: The purpose of these funds is to support Early Childhood Community Network Pilots to implement the five strategies outlined in the Early Childhood Care and Education Network - Roadmap to 2015, which are as follows:

1. Unify expectations;
2. Support teachers and providers;
3. Measure and recognize progress;
4. Fund high quality providers; and
5. Provide clear information and high quality choices.

The ultimate goal of the Early Childhood Care and Education Network is to prepare our youngest learners for kindergarten.

Basis of Allocation: Allocations were determined competitively via a request for applications. The selection of the Community Network Pilots occurred through a two-step process – 1. Application review for basic requirements and 2. Interview with the finalists. The interview sought to determine networks that could demonstrate their readiness to work on the five strategies listed above.

Dr. Beebe recused herself from voting on this item.

- 5.2.16 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor:	LSU-Health Science Center
Contract Period:	01/31/2014 - 09/30/2014
Contract Amount:	\$102,734.00
Fund:	Federal Fund - IDEA Part B
Competitive Process:	Non Competitive

Description of Service: This agreement will provide for activities for the federally funded 2008-2013 Deaf Blind Project for which funding was extended through 9/30/14 to be completed. Activities will include building capacity of current and future educators working with students who are deaf-blind, facilitation of effective instructional strategies for students with deaf-blindness, and outreach and early intervention identification for families and service providers.

- 5.2.17 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract:

Contractor: Department of Health and Hospitals
Contract Period: 04/01/2014 - 08/31/2014
Contract Amount: \$196,252.00
Fund: Federal Funds - USDA
Competitive Process: Non Competitive

Description of Service: This Interagency Agreement will provide that the Louisiana Department of Health and Hospitals, Office of Public Health (DHH), Sanitarian Services Section, conduct pre-opening inspections of each food service site or preparation facility participating in the SFSP. The sanitarian services will perform at least one (1) other inspection (besides the pre-opening inspection) at each site/facility during the period of operation and record inspection results on the appropriate inspection form.

- 5.2.18 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Volunteers of America North LA
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$360,000.00
Amended Amount: \$38,400.00
Contract Amount: \$398,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.19 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Urban Support Agency, Inc.
Contract Period: 07/01/2013 - 06/30/2014

(Motion continues on page 10)

Previous Amount: \$639,000.00
 Amended Amount: \$133,800.00
 Contract Amount: \$772,800.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.20 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Outreach Community Development Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$240,000.00
 Amended Amount: \$6,000.00
 Contract Amount: \$246,000.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

5.2.21 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: NZBC Urban Corporation
 Contract Period: 07/01/2013 - 06/30/2014
 Previous Amount: \$180,000.00
 Amended Amount: \$8,400.00
 Contract Amount: \$188,400.00
 Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
 Competitive Process: Competitive/21st CCLC RFP Process

(Motion continues on page 11)

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.22 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Akili Academy/Crescent City Schools
Contract Period: 07/01/2013 - 06/30/2014
Previous Amount: \$492,000.00
Amended Amount: \$74,400.00
Contract Amount: \$566,400.00
Fund: Federal - Title IV - 21st Century Community Learning Centers (21st CCLC)
Competitive Process: Competitive/21st CCLC RFP Process

Description of Service: The contract provides before-, during-, and after-school academic enrichment opportunities for children attending low-performing schools through the establishment and operation of 21st Century Community Learning Centers.

- 5.2.23 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following LDE contract amendment:

Contractor: Karen Boudreaux
Contract Period: 02/01/2012 - 01/31/2015
Previous Amount: \$79,500.00
Amended Amount: \$25,500.00
Contract Amount: \$105,000.00
Fund: Federal Fund - Title III
Competitive Process: Non Competitive

Description of Service: The contract is being amended for the contractor to calculate the performance of Title III subgrantee Local Education Agencies (LEAs) and the state on ESEA/NCLB Title III Annual Measurable Achievement Objectives (AMAOs) for the 2013-2014 school years, using student assessment data (ELDA, LEAP, iLEAP, etc.).

- 5.2.24 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Blitch/Knevel Architects, Inc.
Contract Period: 03/09/2012 - 03/09/2015
Previous Amount: \$1,473,321.00
Amended Amount: \$15,433.60
Contract Amount: \$1,488,754.60
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional service for a Phase II environmental subsurface investigation, and a pre-renovation ACM and LBP survey for Drew Elementary School renovation. It adds three (3) days to the design time due to Hurricane Isaac and fourteen (14) days to design time due to historic preservation revisions. This amendment provides for reimbursable expenses for regulatory agency approvals and for the printing of bidding documents.

- 5.2.25 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: Byron J. Stewart and Associates, APC
Architects and Planners
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$105,034.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project provides for the refurbishment of Rosenwald Elementary School.

- 5.2.26 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Jacobs Project Management Company/CSRS
Consortium
Contract Period: 12/01/2013 - 11/30/2016
Previous Amount: \$23,590,758.00
Amended Amount: \$1,069,673.31

(Motion continues on page 13)

Contract Amount: \$24,660,431.31
Fund: IAT - FEMA/Lexington Insurance Proceeds
Competitive Process: Competitive

Description of Service: This amendment provides for additional services as directed by the RSD; additional service for support to RSD and "OPSB v. Lexington, et al.;" additional service for claims consulting services; and additional service for grants management - Phase 1 - negative balance/grant debt/undocumented advances/applied payment proposal for the RSD multi-site Capital Plan.

- 5.2.27 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Mahlum Scairono Martinez Architects, LLC
Contract Period: 01/07/2013 - 01/07/2015
Previous Amount: \$35,640.00
Amended Amount: \$21,390.00
Contract Amount: \$57,030.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the relocation of playground equipment at William Fischer School and the relocation of playground equipment at Little Woods Elementary School.

- 5.2.28 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Richard C Lambert, LLC
Contract Period: 06/17/2010 - 06/17/2014
Previous Amount: \$262,656.51
Amended Amount: \$8,032.24
Contract Amount: \$270,688.75
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the adjustment of the basic services fee for Village de L'est Elementary School (roof) and modular demo based on the final construction price of the project. It also provides for prolonged contract administration for the various roof and repair projects based on 48 days of liquidated damages at no fault of the designer.

- 5.2.29 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Shaw Environmental and Infrastructure
Contract Period: 02/14/2013 - 02/14/2015
Previous Amount: \$49,500.00
Amended Amount: \$14,640.00
Contract Amount: \$64,140.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for corrective action work plan preparation.

- 5.2.30 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract:

Contractor: VergesRome Architects, APAC
Contract Period: 03/07/2014 - 03/07/2017
Contract Amount: \$2,696,406.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This project consists of the renovation of John McDonogh High School.

- 5.2.31 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 10/16/2013 - 10/16/2016
Previous Amount: \$265,287.00
Amended Amount: \$20,625.00
Contract Amount: \$285,912.00
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for the additional services for a water flow test, a Phase I environmental site assessment, lead and asbestos investigation, and a topographic survey for Live Oak Elementary School refurbishment.

- 5.2.32 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: VergesRome Architects, APAC
Contract Period: 09/16/2010 - 09/16/2015
Previous Amount: \$944,413.20
Amended Amount: \$38,546.20
Contract Amount: \$982,959.40
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment adjusts the designer's fee for basic services for mothballing of closed schools - safe and secure at George Mondy Elementary School based on the revised AFC. The project was canceled, but is now being reinstated by the owner, and additional scope of work is being added to the project. It also provides for the addition of a new project and project number for demolition of the caretaker's cottage at George Mondy Elementary School and at Andrew J. Bell Junior High School.

- 5.2.33 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved the following RSD contract amendment:

Contractor: Waggonner and Ball Architects, APC
Contract Period: 08/15/2012 - 08/15/2015
Previous Amount: \$1,151,421.08
Amended Amount: \$5,500.00
Contract Amount: \$1,156,921.08
Fund: IAT - FEMA
Competitive Process: Competitive

Description of Service: This amendment provides for additional services for a land survey at the new three-section PK-8 school at Sherwood Forest School (New – PK-8).

- 5.2.34 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with C.D.W. Services, L.L.C., for the mothballing of Andrew J. Bell Junior High School (project number 2011-0853-0001) in the amount of

(Motion continues on page 16)

\$361,334.40 in order to provide for: (1) removal of Regulated Asbestos-Containing Materials (RACM) for all hazardous materials in Building-E (Christy Building) and Building A (Annex Building) due to construction debris and finishes that were dislodged during the necessary repairs to structural walls; (2) installation of a course of brick and mortar cap over the brick wall at the demolished breezeway roof; and (3) general contractor's performance and payment bonds and overhead and profit for the additional work; and

- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.35 On motion of Mr. Guillot, seconded by Mr. Lee, the Board:

- a. approved the Change Order for the construction contract with FHP Tectonics Corporation for the refurbishment of Frederick A. Douglass High School (project number: 2012-0868-0001) in the amount of \$378,871.98 in order to provide for: (1) asbestos removal associated with classroom window replacement, due to the uncovering of unforeseen caulk at these openings that consisted of Regulated Asbestos-Containing Materials (RACM); (2) repair of existing Reinforced Concrete Pipe (RCP); and (3) deletion of the installation of flood gates and Fiber Reinforced Panels (FRP) for the gymnasium, at the owner's request; and
- b. directed the RSD to submit the approved Change Order for consideration and approval at the next regularly scheduled meeting of the Joint Legislative Committee on the Budget.

5.2.36 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the report on the BESE Budget.

5.2.37 On motion of Mr. Guillot, seconded by Mr. Lee, the Board received the BESE member notification protocol developed by the State Superintendent of Education.

5.2.38 On motion of Mr. Guillot, seconded by Mr. Lee, the Board approved, as a Notice of Intent, revisions to Bulletin 1929, *Louisiana Accounting and Uniform Governmental Handbook*, adding Chapter 15. Expenditure Requirements, §1501. Seventy Percent Expenditure Requirement.

Agenda Item 5.3. **Educator Effectiveness Committee** (Schedule 4)

5.3.1 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board received the update regarding the study of the state accountability system and value-added model.

5.3.2 On motion of Ms. Boffy, seconded by Mr. Guillot, the Board deferred until April 2014: "Consideration of revisions to Bulletin 746, *Louisiana Standards for State Certification of School Personnel*, regarding endorsements to existing teaching certificates."

Agenda Item 5.4. **School Innovation and Turnaround Committee** (Schedule 5)

5.4.1 On motion of Mr. Garvey, seconded by Mr. Lee, the Board approved the request for a material amendment to the charter governing Linwood Public Charter School, operated by Shreveport Charter Schools, Inc., to add kindergarten and first grade in the fall of 2014 and expand an additional grade per year until the school serves grades K-8.

Public comments were received on the following School Innovation and Turnaround Committee agenda item:

Agenda Item 3.1., "Consideration of revisions to Bulletin 126, *Charter Schools*, regarding charter school renewal and extension, evaluation of alternative charter schools, and streamlining of policies."

Support: None.

Oppose: None.

Information Only/Other: Mr. Shawn Fleming, Louisiana Developmental Disabilities Council.

5.4.2 On motion of Mr. Garvey, seconded by Mr. Guillot, the Board approved, as a Notice of Intent, revisions to Bulletin 126, *Charter Schools*: §103. Definitions; §105. Purpose of Charter Schools; §505. Eligibility to Apply for a Type 4 Charter School; §1101. Charter School Evaluation; §1103. Alternate Evaluation of Charter Schools; §1303. Extension Review; §1503. Charter Renewal Process and Timeline; §1903. Material

(Motion continues on page 18)

Amendments for BESE-Authorized Charter Schools; §1905. Non-Material Amendments for BESE-Authorized Charter Schools; §2301. State Funding; §2303. Federal Funding; §2713. At-Risk Students; §2907. Leave of Absence; and §2909. Employee Benefits, as presented by the LDE.

Dr. Beebe and Ms. Hill were recorded as being opposed to the motion.

Agenda
Item 6.

Board Advisory Council Reports

Agenda
Item 6.1.

Nonpublic School Council

(Schedule 6)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Nonpublic School Council meeting held February 4, 2014, and approved the tentative agenda for March 25, 2014.

Agenda
Item 6.2.

Superintendents' Advisory Council

(Schedule 7)

On motion of Dr. Miranti, seconded by Mr. Guillot, the Board received the minutes of the Superintendents' Advisory Council meeting held February 13, 2014, and approved the tentative agenda for March 20, 2014.

With no further business to come before the Board, the meeting was adjourned at 10:15 a.m.



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OFFICIAL BOARD MINUTES

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